



**U.S. DEPARTMENT OF JUSTICE
FEDERAL BUREAU OF INVESTIGATION**

FINANCE AND FACILITIES DIVISION | PROCUREMENT SECTION



This determination has been prepared and approved as required by FAR section 7.107-2(a) and Title 15, USC, Section 657q for the purpose of supporting an FBI consolidation of requirements that is necessary and justified for an acquisition exceeding \$2 million.

FINDINGS

A. Background

Solicitation number: 15F06725R0000020

Requirement: Global Multiple Award Construction Contract (GMACC) Indefinite Delivery, Indefinite Quantity (IDIQ) for construction services across the Bureau.

Estimated value of procurement: [REDACTED]

The consolidated requirement will be a multiple-award IDIQ for construction services across the Federal Bureau of Investigation (FBI). It will be organized into three competitive pools serving three primary geographic regions where services are projected over the next five years: Region 1, The National Capital Region (NCR); Region 2, Redstone Arsenal (RSA); and Region 3, Outside the United States missions (OUS). Each region will be competitively awarded to a number of vendors ensuring adequate competition is available for task orders. The FBI plans to award between five (5) and seven (7) vendors for each region. Task orders will be competitively solicited among all vendors in a region.

The anticipated IDIQ contracts will be a continuation of the benefits the Bureau has derived from the expiring Regional Multiple Award Construction Contract (RMACC), or multiple award construction IDIQ contracts. Task orders issued under the planned IDIQ regions will be Firm Fixed Price. The anticipated IDIQ contracts will be for five (5) years composed of a base year and four (4) one-year option periods. The direct cost of awarding the IDIQ contracts will be [REDACTED]. The IDIQ will be used to award task orders for construction projects between \$750k-\$18M in value. The total anticipated ceiling for the IDIQ is \$600M.

B. Selection of Acquisition Strategy

1. Market Research.

Market Research included a review of present contracts, GSA e-Buy schedules, contract vehicles available from other agencies, posting a Request for Information (RFI)/Sources Sought to www.sam.gov, early engagement with vendors supporting the RMACC that will be replaced by this effort, review by the FBI small business representative, and continuous engagements with industry throughout the period of December 2023 – August 2024.



**U.S. DEPARTMENT OF JUSTICE
FEDERAL BUREAU OF INVESTIGATION**

FINANCE AND FACILITIES DIVISION | PROCUREMENT SECTION



A number of other vehicles at other agencies were canvassed for possible applicability to the FBI's requirements. For example, the Department of Transportation MATOC for highway and/or bridge construction with incidental design, the GSA IDIQ for electric vehicle infrastructure-related construction efforts (PBS EVSE IDIQ), other GSA schedules, and the Air Force Global MATOC vehicles. Each contract vehicle found during market research was determined to be unsuitable for one or more reasons, such as the limited scope of the IDIQ being unable to provide for the FBI's anticipated construction needs or incurring administrative burden and contract cost in excess of the benefit to the Government.

On December 4, 2023, an RFI/Sources Sought was posted to SAM.gov. At that time, all small business vendors supporting the existing FBI RMACC IDIQ were contacted and invited to provide feedback in one-on-one sessions to discuss the RMACC and changes anticipated for this GMACC. This feedback sought to address several aspects of the IDIQ where the FBI desired to maximize the ability and interest of small businesses to participate. For example, the decision to limit task orders to \$18M was driven by the common feedback from the small vendor industry base that this dollar value represented the cutoff before individual projects limited their capacity and ability to secure single-project payment and performance bonds. In total, [REDACTED] qualified small businesses responded with [REDACTED] representing incumbent RMACC vendors.

Based on the successful performance of small businesses to satisfy RMACC task orders, in addition to the number of new firms which have signaled their interest in participating, the FBI intends to award GMACC Regions 1 and 2 as total small business set-asides. Region 3 will be full and open competition. OUS requirements present additional challenges and sensitivities compared to domestic construction. GMACC Region 3 awards will be no less than \$750,000.00 and exceed any requirement for small business consideration. For this reason, as well as the sheer size of the region's area of responsibility and the difficulty performing construction services in support of legal attaches, embassies, and consulates, it is not in the FBI's best interest to prioritize small business participation in Region 3.

On October 10, 2024, a survey of www.sam.gov for consolidation memos by other agencies was conducted. An overview of W9127823R0062 and W9127824R0033 confirmed that the FBI's approach was consistent with the market research and determination of U.S. Army Contracting Officers. A comparison was also made to the Comprehensive Construction & Engineering IDIQ (C2E MATOC), 772nd Enterprise Sourcing Squadron, U.S. Air Force. This comparison is seen as especially relevant as it concerns establishing an IDIQ for CONUS and OUS construction, similar to the proposed GMACC. The Air Force determined, without reference to dollar value or project complexity, that all OUS task orders would be competed full and open amongst awardees



**U.S. DEPARTMENT OF JUSTICE
FEDERAL BUREAU OF INVESTIGATION**

FINANCE AND FACILITIES DIVISION | PROCUREMENT SECTION



of the C2E MATOC without set-aside for small business concerns. The GMACC, by comparison, intends to solicit the OUS region without restriction, matching the C2E MATOC. However, the GMACC will provide small business subcontracting requirements in the OUS region, and will solicit both CONUS regions as total small business set-asides. The net IDIQ structure will result in higher small business participation in all aspects of the GMACC compared to the C2E MATOC.

In accordance with FAR 19.203, the Contracting Officer shall consider for all acquisitions the ability of the FBI to maximize the use of small business socioeconomic contracting programs. No specific program (i.e. 8(a), HUBZone, SDVOSB, WOSB, etc.) was identified as providing the robust variety of qualified firms to fill a region. The FBI has a high degree of confidence for small businesses to meet the performance requirements in both the National Capital Region (GMACC Region 1) and Redstone Arsenal (GMACC Region 2).

2. Alternative contracting approaches that would involve a lesser degree of consolidation.

Alternative contracting approaches that would involve a lesser degree of consolidation have been considered. The only viable alternative approach to consolidating this requirement would be to abandon the use of a construction IDIQ contract, and instead solicit open market each project anticipated to be accomplished as a GMACC task order. This approach would pose no benefit to GMACC Regions 1 or 2, which will already be small business set-asides. Comparatively, the chosen approach will increase small business participation and utilization in Region 3, OUS. Further, the chosen approach will reduce the administrative burden, promoting economic efficiencies, as every Region 3 task order would otherwise require the entire procurement process be repeated for each requirement. Furthermore, the potential increase in small business participation is minimal as task orders will be \$750k or greater in value and have the unique OUS construction challenges such as requiring facilities clearances and the ability to navigate foreign laws, customs, and requirements. While it is undoubtedly within the ability of some small businesses to overcome these challenges, it is an unacceptable risk to the FBI to make Region 3 a total small business set-aside to try to find, or establish, and maintain a pool of 5-7 properly qualified OUS small business vendors. Furthermore, what benefit might be realized from maximizing small business opportunities through open market competition would be outweighed by the sacrifice in savings and efficiency of the IDIQ approach. Without the IDIQ for this region, each award would be required to undergo a significant and burdensome security review process prior to being issued to the contractors. Additionally, individual open market awards would not be a net advantage to small businesses, as they would sacrifice the certainty of a five-year IDIQ contract as leverage in establishing or maintaining their subcontractor and supplier relationships.



**U.S. DEPARTMENT OF JUSTICE
FEDERAL BUREAU OF INVESTIGATION**

FINANCE AND FACILITIES DIVISION | PROCUREMENT SECTION



3. Coordination with respect to small business issues.

This determination has been coordinated with the FBI's Small Business Representative, the DOJ Office of Small and Disadvantaged Business Utilization, and the applicable SBA Procurement Center Representative (PCR).

4. Negative impact of the acquisition strategy on contracting with small business concerns.

Much consideration has been given to the design of the GMACC to maximize the participation of small business concerns. This primarily manifested in the decision to make Regions 1 and 2 total small business set-asides in contrast to the unrestricted CONUS region used in the previous RMACC. While the consolidation of OUS as a region could make it more difficult for small businesses to distinguish themselves as suitable IDIQ awardees by demonstrating experience and capability, unrestricted competition will not preclude such firms from competing. Further, this risk is mitigated given the estimated OUS task order value of \$750k to \$18M will be competitively awarded. This provides ample opportunity for qualified small business firms to compete for a place in the contract pool as large businesses will not compete on smaller dollar value task orders. As Region 3 concerns construction requirements outside of the United States and outlying areas, in accordance with FAR 19.000(b)(1)(ii), the Contracting Officer has broad discretion to apply or not FAR part 19 Small Business Programs for this region and subsequent task orders. Market research indicates the negative impact on small business concerns under this arrangement as Regions 1 and 2 total small business set-asides, and Region 3 unrestricted with small business subcontracting requirements, as minimal. As such, in coordination with the Small Business Representative, the consolidated acquisition will be procured under a total set-aside for small business for Regions 1 and 2. The acquisition will be unrestricted for Region 3. The market research and acquisition strategy for this requirement recommends that a multiple-award IDIQ be solicited on www.sam.gov.

- How was the determination that the requirement as appropriate for SB made?

To determine the requirement as appropriate for small business, the FBI reviewed the current RMACC task orders under \$25M. This \$25M was initially chosen as the point of investigation because it covered [REDACTED] excluding only projects near or in excess of the \$45M Small Business Size Standard for the chosen 236220 North American Industry Classification System (NAICS) Code. The review of current and past FBI construction contracts found that small businesses have successfully performed and consistently met FBI requirements for all types of construction activities anticipated to be awarded under the GMACC up to \$12M. However, industry exchanges with small business raised concern that a \$25M task order limit for the GMACC would be



U.S. DEPARTMENT OF JUSTICE FEDERAL BUREAU OF INVESTIGATION

FINANCE AND FACILITIES DIVISION | PROCUREMENT SECTION



too high for a total small business set-aside, citing the capacity to bond projects and the inability to perform multiple large projects simultaneously. Multiple small businesses expressed continued interest in FBI work at or below \$18M and are expected to compete and continue delivering high-quality solutions to the GMACC. Smaller individual task orders would be less advantageous to small businesses, which would then be unable to leverage participation in the GMACC to project the availability of Federal construction projects and would be unable to leverage that information in establishing and maintaining their subcontractor and supplier relationships. By consolidating the next five years of projects worth between \$750k and \$18M in value to be awarded as task orders, small business awardees will each have a single IDIQ award to administer. There will also be a common set of terms and conditions, expectations, and Government points of contact, simplifying and creating consistency for the awardees, improving their ability to perform multiple task orders compared to trying to manage multiple separate awards.

Regarding Region 3 OUS work, small businesses have not consistently demonstrated the resources to successfully perform the types of projects anticipated over the next five years. There are a number of challenges that small businesses are disproportionately likely to face as barriers to task order competition and task order performance compared to other-than-small businesses. For example, the significant geographic area of responsibility for Region 3 could simultaneously task the region to develop proposals and perform on projects as separated and diverse as US Consulates in South America, Western Europe, and Southeast Asia. This is in addition to the requirements particular to FBI OUS projects, such as a Facilities Clearance, for which there is a limited small business vendor base that both meets the requirements and has expressed interest in the GMACC. The Government does not wish to overextend small businesses beyond their means by requiring all Region 3 vendors to be small businesses. Therefore, Region 3 competition shall be unrestricted with both small and other-than-small businesses invited to compete.

- How was the determination made that the consolidation does not negatively impact SB?

The FBI's construction requirements for projects of the size and scope anticipated for the GMACC were successfully met by small businesses in Regions 1 and 2 throughout the previous five years of the RMACC IDIQ. Small business awardees of the previous IDIQ have consistently responded to Requests for Task Order Proposal, and when awarded have demonstrated they possess the capabilities to perform as evidenced through consistent CPARS ratings. Market Research has further demonstrated that a variety of small businesses exist, in addition to those previously relied on by the FBI, who desire to compete and refresh the competition pool. Performance history has further demonstrated that task orders awarded to large businesses for projects at or over \$25M



**U.S. DEPARTMENT OF JUSTICE
FEDERAL BUREAU OF INVESTIGATION**

FINANCE AND FACILITIES DIVISION | PROCUREMENT SECTION



in value relied on a variety of small business partner firms and subcontracts, demonstrating indirectly the ability of small businesses to offer the robust and diverse construction specialties, or the ability to partner with other firms to supply construction specialties, necessary to satisfy the FBI's requirements under \$18M over the next five years. The previous RMACC set aside awards below \$12M to small businesses exclusively. The GMACC will increase the range of small business projects from \$12M to \$18M. The FBI is confident small businesses will be able to perform successfully with this increased project size cap, and market research demonstrates a robust small business industry capable of securing bonds for projects over \$18M. [REDACTED]

[REDACTED]. For these reasons, a \$18M task order maximum award cap will allow the GMACC to satisfy [REDACTED] requirements without exceeding the capabilities of small businesses to successfully perform. In Regions 1 and 2, small businesses are being asked to fulfill the totality of the FBI's requirements and are expected to exceed those requirements. For Regions 1 and 2, this consolidation only removes other-than-small business participation and will result in no negative impact to small business.

For Region 3 of the RMACC, the FBI had difficulty completing projects on time and on budget from the small business sector exclusively. The majority of successful small business participation in Region 3 comes from subcontractors. According to the Government's market research, large businesses are better poised to respond to Task Order Requests for Proposal consistently. This is because large businesses have the resources to maintain performance despite their regional pool possibly becoming saturated with task order awards, and despite the challenge of projects across the globe. This GMACC will require Region 3 contractors to comply with small business subcontracting goals set by statute and agency policy, and it is expected that contractors will continue to exceed subcontracting goals as they have exceeded them across the regions of the RMACC. As a result, while the consolidation may negatively impact the ability of small businesses to compete for IDIQ awards, consolidation is not expected to negatively impact the future participation of small businesses in Region 3 of the GMACC.

5. Steps taken to include small business concerns in the acquisition strategy.

Consolidation will provide small businesses with exclusive access to Regions 1 and 2. These regions were previously serviced with a mixture of set-aside and unrestricted vendor pools with the RMACC. Consolidation will provide the same opportunity for small business participation in Region 3 as the RMACC provided, which means exceptional small business firms will be able to compete for prime contracts, and large businesses will be required to utilize small businesses for task order performance.



**U.S. DEPARTMENT OF JUSTICE
FEDERAL BUREAU OF INVESTIGATION**

FINANCE AND FACILITIES DIVISION | PROCUREMENT SECTION



Many market research efforts were specifically aimed at investigating and encouraging maximum small business participation. For example, all incumbent RMACC small business vendors were invited to one-on-one sessions to provide feedback to the Government and describe both their positive and negative experiences with the RMACC. Further, they were asked to identify any aspect of the Government's GMACC plans which would discourage them from continuing to compete and continuing to work with the FBI. This fruitful industry exchange process uncovered a number of positive FBI practices that were asked to be continued, and it identified elements of the GMACC plan which would be detrimental to small business interest. A specific example is the original GMACC plan, as described in the Sources Sought/RFI posted to www.sam.gov, where the FBI planned to set the task order ceiling at \$25M. The small business size standard for the applicable 236220 NAICS is \$45M. The majority of responding firms identified \$25M as exceeding the magnitude of projects they are able to consistently perform due to factors such as administrative capacity, the ability to secure single project bonds, and the ability to secure aggregate bonds. Based on this feedback, the FBI determined that \$18M was a large enough task order ceiling to address the majority of projected construction requirements, without limiting competition interest. In similar fashion, other aspects of the GMACC acquisition plan were revised based on feedback from a variety of small business partners. Furthermore, much deliberation was given to the desire to maximize small business participation by making all three regions a total small business set-aside. It was only after a critical review of the performance history of the RMACC OUS region and frank discussions with OUS customers and the Small Business representative that it was determined pursuing this strategy posed a larger risk to the FBI, than the possible benefits of limiting OUS projects to small business.

Small businesses are often more agile in decision making, empower decision making at a lower level of responsibility to support our ever-changing mission, and their performance on each individual project represents a more substantial opportunity or risk to their reputation as a business. For this reason, they can be relied on to work hard throughout the life of a project and throughout the life of the GMACC. These factors garner better value for the FBI and the taxpayer and provide a win-win opportunity for small businesses. For these reasons, the FBI is excited to set aside Regions 1 and 2 to maximize small business participation, and the FBI will enforce small business subcontracting requirements to achieve small business participation in Region 3.



U.S. DEPARTMENT OF JUSTICE
FEDERAL BUREAU OF INVESTIGATION

FINANCE AND FACILITIES DIVISION | PROCUREMENT SECTION



C. Benefits

Measurable Benefits:

Establishing an IDIQ in accordance with FAR 16.504 to consolidate the requirements for repair, renovation, and new construction work in support of the FBI is necessary to meet mission objectives. An IDIQ provides a contracting vehicle which shortens procurement acquisition lead time, assures operational continuity, and improves FBI security by minimizing the number of prime contractors to manage facility access. Use of an IDIQ is appropriate in accordance with FAR 16.501-2(a), when exact times and/or exact quantities of future deliveries are not known at the time of award. FAR 16.504(b) indicates that the Contracting Officer may use an indefinite-quantity contract when the Government cannot predetermine, above a specified minimum, the price quantities of supplies and services that the Government will require during the contract period, and it is inadvisable for the Government to commit itself for more than a minimum quantity in this scenario. The Contracting Officer should use an indefinite-quantity contract when a recurring need is anticipated. Over the next five years, the FBI Facilities Capital Plan projects [REDACTED] to be accomplished via Federal contract. It is anticipated that the GMACC will be used to fulfill customer requirements across the Bureau to support construction needs in all three proposed regions.

The consolidation of Regions 1 and 2 will serve only to advocate for small business, as the regions will be total small business set-asides. Small businesses will receive the IDIQ awards and only small businesses will compete for subsequent task orders. The consolidation of Region 3 will not enhance or hinder small business participation. From the perspective of the awarded firms, consolidation will also reduce administrative burden and provide consistent terms and conditions within a single contract for the FBI. For the FBI, consolidation should offer increased discounts as well as a single point of contact for problem resolution or warranty inquiries, mitigate supply chain issues as well as reduce multiple points of vulnerability for entry of gray market, black market, and counterfeit products into secure networks. This is especially true for construction task orders, which may utilize cost-saving and schedule-shortening manufacturing methods like prefabricated structures or segments of structures, which substantially benefit the Government as a customer in price and delivery speed; but which must be balanced against the risk of prefabrication being used as an attack vector to plant listening, surveillance, or other devices in FBI facilities. Consolidation simplifies and creates consistency for [REDACTED] to have a small number of prime contractors with which to coordinate [REDACTED] prefab inspections and supply chain control investigations.

Reduction of administrative or personnel costs alone is not sufficient justification for this consolidation unless the cost savings are expected to be substantial. In addition to the above, the FBI will benefit from an expedited and simplified ordering process, shorter Procurement Acquisition Lead Time (PALT), streamlined Government requirements, and require less



U.S. DEPARTMENT OF JUSTICE
FEDERAL BUREAU OF INVESTIGATION

FINANCE AND FACILITIES DIVISION | PROCUREMENT SECTION



resources to manage and perform contract administration both for pre-award base year solicitation and award activities and for quarterly and annual option year administrative activities. These include but are not limited to actions such as Accruals, Undelivered Obligation (UDO) reporting, Contractor Performance Assessment Reporting System (CPARS), modifications, invoice processing, monthly status/delivery reports, internal data calls, Federal Funding Accountability and Transparency Act (FFATA) compliance reviews etc. These activities may not be time consuming as singular functions, but as collective activities across [REDACTED] projected awards, the administrative burden is a gestalt challenge. The administrative savings and risk mitigation that will be realized because of this consolidated task order outweigh any perceived negative impacts to small businesses, especially for Regions 1 and 2.

Region 3, in addition to the aforementioned routine administrative requirements, would require the constant adjudication of security and clearance qualifications for repeated open market rewards. Such a duplicative effort would not just be a burden to procurement functions, but it would be an excessive burden for [REDACTED] responsible for processing a DD Form 254 for each contract, reviewing Organizational Conflict of Interest or Foreign Ownership, Control, or Influence (FOCI) disclosures, and repeating the paperwork necessary to grant prime contractors the necessary approval and access to [REDACTED] work sites: [REDACTED].

In addition to [REDACTED], disruptions to these locations are frequently time-sensitive matters. The fastest hypothetical means of issuing an open market solicitation to resolve issues such as HVAC failures or structural damage for these locations, would be to limit the solicitation only to firms which already possess a Top Secret DD 254. DD 254s are required only at the base IDIQ level and flow down to any associated [REDACTED] task orders. These DD 254s often take months of work [REDACTED] to produce. Without knowing how many firms might respond to a solicitation, [REDACTED] may be

asked to review any number of companies, and becomes a substantial PALT bottleneck that is unacceptable to resolving facilities issues for the FBI's global no-fail missions. Intelligence, counterintelligence, anti-terrorism, diplomatic attaché, legal attaché, and other missions with international implications cannot afford delays when facilities issues threaten mission disruption. For these reasons, it is imperative for FAU to react quickly enough to urgent construction needs to be protected by establishing this IDIQ. By having a pool of 3 to 5 vendors, vetted [REDACTED], unacceptable mission critical risks can be significantly mitigated.

Additionally, FBI construction projects are rarely solicited early before funds availability, and instead solicited when funding becomes available. The last time a U.S. federal budget was passed on time or without the use of a continuing resolution was in 2006. Since then, all federal budgets have been passed between late December and early May of the applicable



U.S. DEPARTMENT OF JUSTICE
FEDERAL BUREAU OF INVESTIGATION

FINANCE AND FACILITIES DIVISION | PROCUREMENT SECTION



fiscal year. This consistent trend has led to a large percentage of FBI projects issued [REDACTED]. Unlike services or commodities, where prices are, broadly speaking, stable throughout a calendar year, construction firms are rarely willing if not entirely unable to guarantee prices for more than 90 days. Therefore, an IDIQ that empowers the FBI to leverage single-phase task orders substantially contributes to the ability of the FBI to react in a timely matter to mission critical facility failures; and to execute funds close to the end of the fiscal year.

The PALT for one stand-alone “C” type contract is 365 days. The PALT for a task-order issued utilizing a multiple award IDIQ, such as the proposed GMACC, is typically 180 days or less. Without the GMACC in place, or a similar vehicle, the Government is left with two options: Open market competition (365-day PALT) or utilizing sole-source/direct award authorities (180-day PALT without the benefits of competition). Historically, FAU has seen a [REDACTED]% price premium when choosing a sole source/direct award solution in lieu of open market competition. The most pertinent example of competitive versus single source procurement pricing faced by FAU is the Academic Zone, a FY24 award utilizing the RMACC IDIQ that the GMACC will replace. An initial Rough Order of Magnitude estimate from industry, with only one vendor participating in the Request for Proposal (RFP), placed the project at \$[REDACTED]. The Government determined through market research and cost analysis that this was unreasonable and resolicited the project. With competition, the project was successfully awarded for \$512M, a [REDACTED]% savings.

A construction IDIQ will empower FAU with a best of both worlds option: A balance of speed and price competition. The savings in PALT and the avoidance of unnecessary escalations to price from direct awards is significant. Tables 1-4 below detail the difference in administrative cost for “C” contracts versus task orders. With the preponderance of requirements being solicited in Q3 and Q4, it is estimated that at a minimum, half of the FBI’s projected requirements over the next five (5) years will face sole source/direct award to meet PALT limitations, and the remaining half will be procured through open market competition. Approximately 20 projects will face the avoidable administrative burden of “C” awards (approximately \$[REDACTED] in unnecessary cost), and approximately 20 projects will face a [REDACTED]% sole source price premium (estimated \$[REDACTED]). Altogether, the Government is at risk to lose \$[REDACTED] in avoidable inefficiencies through additional administrative costs and sole source price premiums without the GMACC in place.

The establishment of a multiple award IDIQ and issuance of task orders over five years is anticipated to save approximately \$[REDACTED] in administrative costs alone. The use of an IDIQ to more quickly award single-phase task orders, as opposed to standalone two-phase design-build contracts, will remove a substantial amount of work necessary for drafting, reviewing, issuing, and adjudicating the first phase of award for the Contract Specialist,



U.S. DEPARTMENT OF JUSTICE
FEDERAL BUREAU OF INVESTIGATION

FINANCE AND FACILITIES DIVISION | PROCUREMENT SECTION



Contracting Officer, members of the Integrated Project Team, FAU Team Lead, and Unit Chief. Many of these roles are supplemented by considerable contractor support, made necessary by the amount of work required for two-phase solicitations compared to single-phase. Savings are estimated in the tables below through an overview of hourly rates and the opportunity cost of members of the procurement decision chain being required to perform two phases, instead of one.

Table 1: Cost to Award a Standalone "C" Contract (365 days)

Labor Category	Total Cost
Contracting	\$ [REDACTED]
Engineering	\$ [REDACTED]
Security Review	\$ [REDACTED]
Legal Review	\$ [REDACTED]
Total	\$ [REDACTED]

Table 2: Cost to Award a Multiple-Award IDIQ (365 days)

Labor Category	Total Cost
Contracting	\$ [REDACTED]
Engineering	\$ [REDACTED]
Security Review	\$ [REDACTED]
Legal Review	\$ [REDACTED]
Total	\$ [REDACTED]

Table 3: Cost to Award a Task Order (180 days)

Labor Category	Total Cost
Contracting	\$ [REDACTED]
Engineering	\$ [REDACTED]
Security Review	\$ [REDACTED]
Legal Review	\$ [REDACTED]
Total	\$ [REDACTED]



U.S. DEPARTMENT OF JUSTICE
FEDERAL BUREAU OF INVESTIGATION

FINANCE AND FACILITIES DIVISION | PROCUREMENT SECTION



Table 4: Cost Analysis

Acquisition Approach	IDIQ Cost	"C" Cost
Cost per Task Order or "C" Type Contract	\$ [REDACTED]	\$ [REDACTED]
Number of Estimated Actions	[REDACTED]	[REDACTED]
Subtotal	\$ [REDACTED]	\$ [REDACTED]
IDIQ Establishment Cost	\$ [REDACTED]	\$ [REDACTED]
Total	\$ [REDACTED]	\$ [REDACTED]

Based on the estimated number of FY2025 procurements and subsequent fiscal years, as demonstrated in Table 4, the increase in program costs to award a stand-alone "C" contract is [REDACTED] % over the cost of establishing and utilizing the GMACC. These administrative cost savings in conjunction with the estimated cost savings through competitive acquisition strategies total to a substantial savings far greater than the 5% required in FAR 7.107-2(d).

The GMACC maximizes the opportunity to acquire high quality construction projects at competitive prices, while minimizing acquisition time, performance risks, and schedule risks. The GMACC also facilitates the Government's rapid response to emerging and unforeseen requirements. Individual standalone "C" contracts would present acquisition challenges and noticeable price increases in those circumstances. Further, being able to reduce the time it takes to complete the acquisition process for classified OUS projects minimizes the potential of disruption to the FBI's mission and ensures overseas operations continue to operate 24 hours per day, 365 days per year. The benefits of the GMACC substantially exceed those of alternative solutions both quantifiably and non-quantifiably.

D. Conclusion

The work required under the proposed solicitation involves architectural, mechanical, electrical, civil, commercial, and other construction engineering disciplines for repair, renovation, and new construction. These disciplines are needed for [REDACTED] anticipated projects across the FBI including operational facilities, education and training facilities, labs, and technically sophisticated locations, firing ranges, embassies, consulates, legal attaches, and other locations. The consolidated approach is critical to the success of the Facilities Acquisition Unit as a partner to the missions and customers that rely on procurement support for their construction needs. A multiple award IDIQ will provide a flexible and effective contract vehicle that can accommodate the FBI's known and unknown repair, renovation, and new construction requirements, and has been shaped to provide maximum practicable participation by small business concerns as prime or subcontractors



**U.S. DEPARTMENT OF JUSTICE
FEDERAL BUREAU OF INVESTIGATION**

FINANCE AND FACILITIES DIVISION | PROCUREMENT SECTION



The FBI analyzed the benefits of consolidating construction efforts between \$750K and \$18M into three service regions. In accordance with FAR 7.107-2(d)(2), the FBI found that consolidation is necessary and justified. There are measurable benefits to the Government in terms of delivery time, cost, and efficiency, and the procurement strategy has incorporated significant effort to minimize any negative impact to small business participation in the FBI's future requirements. The financial benefits of this action meet the thresholds in FAR 7.107-2(d) and the overall expected benefits, as explained above, are critical to the FBI's mission success.

The acquisition strategy provides for maximum practical participation by small business concerns. Market research took into consideration required sources and other agency vehicles. The Government sought industry feedback for this requirement to ensure any resultant solicitation maximized small business opportunities. The FBI considered alternative contract approaches and impact to small businesses through the approach determined herein. Ultimately, the acquisition strategy benefits the Government through an expeditious contract vehicle that maximizes small business participation.



**U.S. DEPARTMENT OF JUSTICE
FEDERAL BUREAU OF INVESTIGATION**

FINANCE AND FACILITIES DIVISION | PROCUREMENT SECTION



E. Determination

Based upon the above stated facts, I determine that in accordance with FAR subsection 7.107-2:

1. The necessary steps have been taken to support the need for consolidation;
2. The benefits of the acquisition substantially exceed the benefits that would be derived from each of the alternative contracting approaches identified under paragraph B.2 above, including benefits that are quantifiable in dollar amounts as well as any other specifically identified benefits.
3. As a result, consolidation for the above referenced requirement is necessary and justified.



U.S. DEPARTMENT OF JUSTICE
FEDERAL BUREAU OF INVESTIGATION

FINANCE AND FACILITIES DIVISION | PROCUREMENT SECTION



I certify that this justification is accurate and complete to the best of my knowledge and belief.

Reviewed by:

Contracting Officer: [21912024

[REDACTED]

Signature

Date

Reviewed by:

Unit Chief/Team Supervisor:

[REDACTED]

12/9/2024

Signature

Date

Reviewed by:

FBI Fiscal and Contract Law Unit:

[REDACTED]

12/11/2024

Signature

Date

Reviewed by:

FBI Small Business Specialist:

[REDACTED]

12/11/2024

Signature

Date



**U.S. DEPARTMENT OF JUSTICE
FEDERAL BUREAU OF INVESTIGATION**

FINANCE AND FACILITIES DIVISION | PROCUREMENT SECTION



I certify that this justification is accurate and complete to the best of my knowledge and belief.

Reviewed by:

Competition Advocate:

[Redacted Signature]

Signature

Date

Reviewed by:

Bureau Procurement Chief:

[Redacted Signature]

Signature

Date

Reviewed by:

[Redacted Signature]

Signature

Date

Concurrence by:

Procurement Center Representative

Office of Government Contracting

U.S. Small Business Administration

[Redacted Signature]

Signature

Date



U.S. DEPARTMENT OF JUSTICE
FEDERAL BUREAU OF INVESTIGATION

FINANCE AND FACILITIES DIVISION | PROCUREMENT SECTION



Reviewed by:

DOJ Office of Small Disadvantaged Business Utilization:

Signature

Date

Approved

Substantial benefit has been reviewed by Senior Procurement Executive and Consolidation as necessary and justified is Approved by < *Pick one: Senior Procurement Executive or Deputy Attorney General* >.

Approved by

DOJ Senior Procurement Executive:

Signature

Date

<And/Or>

Approved by

Deputy Attorney General:

Signature

Date